

TENTATIVE RULING

Case: Vinzymes, Inc. v. Amplifye, Inc.
Case No. CV2025-2558

Hearing Date: March 24, 2026 **Department Fourteen** **9:00 a.m.**

The Court notes that defendant/cross-complainant Amplifye, Inc. (“cross-complainant”) failed to properly meet and confer “in person or by telephone, or by video conference” prior to filing this motion for judgment on the pleadings. (Code Civ. Proc., § 439; Levens Decl., ¶¶ 2, 3.) However, the Court may not deny a motion for judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

Cross-complainant’s request for judicial notice filed with its moving papers is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.) Cross-complainant’s request for judicial notice filed with its reply is **DENIED**. (Evid. Code, §§ 452, 453.) The proffered documents are not relevant to the Court’s determination of this motion. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Cross-complainant’s motion for judgment on the pleadings is **DENIED**. (Code Civ. Proc., § 438; see *Performance Plastering v. Richmond American Homes of California, Inc.* (2007) 153 Cal.App.4th 659, 665; *Allstate Ins. Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330-331; *Alameda County Waste Management Authority v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1174-1175.) The Court finds that plaintiff/cross-defendant Vinzymes’ (“cross-defendant”) general denial in its answer to the cross-complaint is sufficient to put into issue all the allegations of the cross-complaint; and (2) paragraph 10 of cross-defendant’s answer, plead as an [inconsistent] affirmative defense, cannot serve as a judicial admission. (Code Civ. Proc., § 431.30, subd. (d); *Anaheim Mobile Estates, LLC v. State of California* (2025) 113 Cal.App.5th 602, 614; *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240; *People ex rel. Becerra v. Superior Court* (2018) 29 Cal.App.5th 486, 499; *Edger v. Foster* (1941) 48 Cal.App.2d 580, 583; Answer to cross-complaint, ¶¶ 1, 10.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.